

**Payment Services Act** means the Payment Services Act 2019 of Singapore.

**Prepayment** means Additional Partial Prepayment (Margin Call/Risk Exposure Top-Up Payment) and/or Partial Prepayment.

**Related Body Corporate** has the same meaning ascribed to it in the Companies Act, Cap 50.

**Relevant Bank** has the meaning given to it in clause 3.7(a).

**Relevant Transaction** means transaction(s) that is/are the subject of a dispute between the Parties.

**Rights** has the meaning given to it in clause 12.3.

**Sanctions** means any trade, economic or financial sanctions laws, regulations, embargoes or restrictive measures administered, enacted or enforced by a Sanctions Authority, and includes the placement on a Sanctions List.

**Sanctions Authority** means: (i) the Security Council of the United Nations; (ii) the United States of America; (iii) the European Union; (iv) the member states of the European Union; (v) the United Kingdom; (vi) the governments and institutions or agencies of any of the foregoing, including OFAC, the US Department of State, the Council of the European Union, Her Majesty's Treasury, the Ministry of Finance of Luxembourg, the Ministry of Foreign and European Affairs and the Luxembourg Commission of Supervision of the Financial Sector (CSSF); and (vii) any other jurisdictions where Convera or a Convera Group Company has operations.

**Sanctions List** means any applicable Sanctions programs of jurisdictions where Convera or a Convera Group Company has operations including but not limited to the Specially Designated Nationals and Blocked Persons list maintained by OFAC, the Consolidated List of Persons and Entities subject to Sanctions maintained by the European Commission, the Consolidated List of Sanctions Targets maintained by Her Majesty's Treasury, or any similar list maintained by, or public announcement of a Sanctions designation made by, a Sanctions Authority, each as amended, supplemented or substituted from time to time.

**Services** means the provision of Foreign Exchange Contracts, the making of payments by telegraphic transfer, direct debit or credit or banker's draft, entering into Forward Contracts and other global payment solutions provided by Convera in accordance with an Instruction.

**Settlement** means the total amount, including the cost of currency acquisition as well as any fees and charges (excluding any fees and charges set forth in any Addendum, if applicable) the Client owes to Convera less any Prepayment made. If Settlement is paid to Convera electronically, the Client agrees that Settlement will not be recallable by the Client without Convera's prior written consent.

**SGD** means the Singapore dollar.

**Site Administrator** means the individual designated by the Client to access and administer the security of the Client's usage of the Online Payment System, such as granting or rescinding Authorised User privileges and maintaining the Client Access Methods.

**Standing Order Effective Period** means the time within which the Client has instructed Convera to purchase or sell Contract Funds at the Target Rate.

**Standing Order Instruction** means the Instruction to purchase/sell for the Client's account Contract Funds at the Target Rate within the Standing Order Effective Period, without prior oral approval. The Standing Order Instruction must also set forth the currency, the amount, and delivery instructions (if any).

**Sustainable and Purchasable** means in regard to foreign exchange market rates, the rate at which a Standing Order will be executed. The rate must be traded in the market with volume sufficient to sustain that rate level for a commercially reasonable timeframe.

**Target Rate** means the rate at which the Client has instructed Convera to purchase/sell Contract Funds if and when the stipulated rate is Sustainable and Purchasable.

**Terms and Conditions** means these Terms and Conditions and any exhibits, attachments, schedules and/or addendums, which taken together, govern the relationship among the Parties, as it relates to the ordering, delivery and receipt of the Services.

**Trading Application** means the client application form completed and submitted by the Client to Convera which incorporate these Terms and Conditions.

**Transaction Confirmation** means a Notification that details the transaction(s) the Client has directed Convera to process upon Convera's receipt of Settlement from the Client.